

SOLICITATION, OFFER, AND AWARD			1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.		RATING	PAGE OF PAGES
2. CONTRACT NUMBER		3. SOLICITATION NUMBER		4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL		5. DATE ISSUED
7. ISSUED BY		CODE		8. ADDRESS OFFER TO (If other than item 7)		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION				
9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____ (Hour) (Date)				
CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.				
10. FOR INFORMATION CALL:	A. NAME		B. TELEPHONE (NO COLLECT CALLS)	C. EMAIL ADDRESS
			AREA CODE NUMBER EXTENSION	

11. TABLE OF CONTENTS							
(X)	SECTION	DESCRIPTION	PAGE(S)	(X)	SECTION	DESCRIPTION	PAGE(S)
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	C	DESCRIPTION/SPECIFICATIONS/WORK STATEMENT			J	LIST OF ATTACHMENTS	
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	E	INSPECTION AND ACCEPTANCE			K	REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	
	F	DELIVERIES OR PERFORMANCE					
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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.					
12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.					
13. DISCOUNT FOR PROMPT PAYMENT <i>(See Section I, Clause Number 52.232-8)</i>		10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS <i>(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):</i>		AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE

15A. NAME AND ADDRESS OF OFFEROR		CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER <i>(Type or print)</i>			
15B. TELEPHONE NUMBER		☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE		18. OFFER DATE	
AREA CODE	NUMBER						

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED		20. AMOUNT		21. ACCOUNTING AND APPROPRIATION	
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()				23. SUBMIT INVOICES TO ADDRESS SHOWN IN <i>(4 copies unless otherwise specified)</i>	
24. ADMINISTERED BY (If other than Item 7)				25. PAYMENT WILL BE MADE BY	
				CODE	
26. NAME OF CONTRACTING OFFICER (Type or print)				27. UNITED STATES OF AMERICA	
				(Signature of Contracting Officer)	
				28. AWARD DATE	

Section A - Solicitation/Contract Form

CNAP/CNAL/CPRG Aviation Fleet Transition Support

The resulting SeaPort task order shall be awarded as a competitive Service Disabled Veteran Owned Small Business (SDVOSB) set-aside task order within SeaPort NxG. Offers are solicited from, and the award resulting from this solicitation will only be made to qualified SDVOSB concerns in accordance with FAR 52.219-27. Please verify that your SDVOSB certification is current in the Dynamic Small Business Search: https://dsbs.sba.gov/search/dsp_dsbs.cfm

This requirement is currently being met by SeaPort task order N00244-21-F-3006, awarded to TQI Solutions, Inc.

In order to properly staff the evaluation process, all contractors who anticipate submitting a proposal are encouraged to send an e-mail to christine.jordan@navy.mil one week prior to the closing of the solicitation advising of this intent.

All prime contractors should provide evidence of VETS-4212 compliance.

Offerors MUST be current SeaPort NxG contract holders and provide their "D" contract number.

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
5000	San Diego - Task 4.1, 4.3, and 4.6 Pricing Arrangement: Firm Fixed Price	12	Months		
5001	Norfolk - Task 4.2, 4.4, and 4.5 - Option 1 Pricing Arrangement: Firm Fixed Price	12	Months		
5002	San Diego - Overtime Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Firm Fixed Price	12	Months		
5003	Norfolk - Overtime Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5100	San Diego - Task 4.1, 4.3, and 4.6 - Option 1 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5101	Norfolk - Task 4.2, 4.4, and 4.5 - Option 1 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5102	San Diego - Overtime - Option 1 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5103	Norfolk - Overtime - Option 1 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5200	San Diego - Task 4.1, 4.3, and 4.6 - Option 2	12	Months		

	Pricing Arrangement: Firm Fixed Price				
Option Line Item 5201	Norfolk - Task 4.2, 4.4, and 4.5 - Option 2 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5202	San Diego - Overtime - Option 2 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5203	Norfolk - Overtime - Option 2 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5300	San Diego - Task 4.1, 4.3, and 4.6 - Option 3 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5301	Norfolk - Task 4.2, 4.4, and 4.5 - Option 3 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5302	San Diego - Overtime - Option 3 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5303	Norfolk - Overtime - Option 3 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5400	San Diego - Task 4.1, 4.3, and 4.6 - Option 4 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5401	Norfolk - Task 4.2, 4.4, and 4.5 - Option 4 Pricing Arrangement: Firm Fixed Price	12	Months		

Option Line Item 5402	San Diego - Overtime - Option 4 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5403	Norfolk - Overtime - Option 4 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Firm Fixed Price	12	Months		
7000	San Diego - ODC Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Cost No Fee	12	Months		
7001	Norfolk- ODC Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Cost No Fee	12	Months		
Option Line Item 7100	San Diego - ODC - Option 1 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Cost No Fee	12	Months		
Option Line Item 7101	Norfolk - ODC - Option 1 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Cost No Fee	12	Months		
Option Line Item 7200	San Diego - ODC - Option 2 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Cost No Fee	12	Months		
Option Line Item 7201	Norfolk - ODC - Option 2 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Cost No Fee	12	Months		
Option Line Item 7300	San Diego - ODC - Option 3 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Cost No Fee	12	Months		
Option Line Item 7301	Norfolk - ODC - Option 3 Partial Payments are authorized to be paid no more frequently than monthly in arrears.	12	Months		

	Pricing Arrangement: Cost No Fee				
Option Line Item 7400	San Diego - ODC - Option 4 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Cost No Fee	12	Months		
Option Line Item 7401	Norfolk - ODC - Option 4 Partial Payments are authorized to be paid no more frequently than monthly in arrears. Pricing Arrangement: Cost No Fee	12	Months		

Section C - Description/Specifications/Statement of Work

Requirements

The Commander, Naval Air Forces, U. S. Pacific Fleet (CNAP), Commander, Naval Air Forces, U.S. Atlantic Fleet (CNAL), and the Commander, Patrol and Reconnaissance Group (CPRG), requires contract support with Navy Aviation transitions to new aircraft, capability upgrades and sundown of legacy platforms, permanent duty station (PDS) and home port changes (HPC), along with establishment and disestablishment of units.

Section D - Packaging and Marking

All deliverables shall be packaged and marked in accordance with Section D of the SeaPort NxG Multiple Award Contract.

Section E - Inspection and Acceptance

52.246-4 INSPECTION OF SERVICES -- FIXED-PRICE (AUG. 1996)

Inspection and acceptance shall be performed in accordance with the basic SeaPort NxG contract.

Overall Contract Inspection/Acceptance Locations

5000	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
5001	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
5002	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
5003	Inspection and Acceptance Location

	Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5100	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5101	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5102	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370

Option Line Item 5103	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5200	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5201	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5202	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES

	Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5203	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5300	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5301	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5302	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET

	NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5303	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5400	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5401	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5402	Inspection and Acceptance Location Both Destination Instructions: COR will accept services.

	DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 5403	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
7000	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
7001	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
	Inspection and Acceptance Location

Option Line Item 7100	Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 7101	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 7200	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 7201	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370

Option Line Item 7300	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 7301	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 7400	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370
Option Line Item 7401	Inspection and Acceptance Location Both Destination Instructions: COR will accept services. DoDAAC: N57025 CountryCode: USA COMMANDER NAVAL AIR FORCE PAC FLEET NAVAL AIR STATION NORTH ISLAND, P O BOX 357051 SAN DIEGO, CA 92135-7051 UNITED STATES

Bud Nelson, COR Email: frank.r.nelson3.civ@us.navy.mil Telephone: 619-545-5370

Section F - Deliveries or Performance

Line Item	Delivery Schedule	Quantity	Address and POC
5000	Period of Performance From 01 Apr 2026 To 31 Mar 2027	12 Months	
5001	Period of Performance From 01 Apr 2026 To 31 Mar 2027	12 Months	
5002	Period of Performance From 01 Apr 2026 To 31 Mar 2027	12 Months	
5003	Period of Performance From 01 Apr 2026 To 31 Mar 2027	12 Months	
Option Line Item 5100	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 5101	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 5102	Period of Performance From 01 Apr 2026 To 31 Mar 2027	12 Months	
Option Line Item 5103	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 5200	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
	Period of Performance	12 Months	

Option Line Item 5201	From 01 Apr 2027 To 31 Mar 2028		
Option Line Item 5202	Period of Performance From 01 Apr 2026 To 31 Mar 2027	12 Months	
Option Line Item 5203	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 5300	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 5301	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 5302	Period of Performance From 01 Apr 2026 To 31 Mar 2027	12 Months	
Option Line Item 5303	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 5400	Period of Performance From 01 Apr 2030 To 31 Mar 2031	12 Months	
Option Line Item 5401	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 5402	Period of Performance From 01 Apr 2030 To 31 Mar 2031	12 Months	
Option Line Item 5403	Period of Performance From 01 Apr 2030	12 Months	

	To 31 Mar 2031		
7000	Period of Performance From 01 Apr 2026 To 31 Mar 2027	12 Months	
7001	Period of Performance From 01 Apr 2026 To 31 Mar 2027	12 Months	
Option Line Item 7100	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 7101	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 7200	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 7201	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 7300	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 7301	Period of Performance From 01 Apr 2029 To 31 Mar 2030	12 Months	
Option Line Item 7400	Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	
Option Line Item 7401	Period of Performance From 01 Apr 2030 To 31 Mar 2031	12 Months	

Section G - Contract Administration Data

The NAVSUP Fleet Logistics Center San Diego will retain post-award administration of this task order. Contact the Contract Specialist if any post-award delays, performance problems, or other issues arise during the performance of this order.

Contract Specialist: Christine Jordan, 619-556-6121, christine.jordan@navy.mil

Contracting Officer: Juana Perez, 619-556-6850, juana.m.perez2.civ@us.navy.mil

Contracting Officer Representative: Bud Nelson, 619-545-5370, frank.r.nelson3.civ@us.navy.mil

The contractor and the customer are hereby advised that any requests for changes must be submitted in writing to the Contracting Officer, who is authorized to issue written changes/modifications under this contract.

Seaport Ombudsman: Charles T Hoyes, charles.t.hoyes.civ@us.navy.mil

Refer to Seaport Standard Operating Procedures section 1.2.3.

Invoices for materials/services rendered shall be submitted electronically through Wide Area Work Flow (WAWF) IAW DFARS 252.232-7003

DO NOT SEND INVOICES TO THE NAVSUP FLC SAN DIEGO CONTRACTING DEPARTMENT

The Government anticipates paying fully certified invoices on a Net 30-day basis. Distribution of payment will be made by Electronic Funds

Transfer (EFT) to the contractors account established in the System for Award Management (SAM) database. It is the responsibility of the contractor to review such accounts to ensure that payment has been reviewed.

The Contractor is hereby advised that the United States Government and Agencies are exempt from State and Local Government Tax by virtue of Article 6 of the United States Constitution. No exemption certificate is required.

****The Government reserves the right to review the resumes of contractor employees performing under the contract solely for the purpose of ascertaining their qualifications relative to the personnel qualifications listed in the PWS. Accordingly, the contractor shall furnish such resumes upon request by the Contracting Officer's Representative, Ordering Officer, or Contracting Officer. *****

Section H - Special Contract Requirements

THE FOLLOWING NAVSUP LOCAL TEXT IS HEREBY MADE PART OF THE STATEMENT OF WORK/PERFORMANCE WORK STATEMENT.

SUPTXT 203.1106-1 (3-18) NAVY USE OF ABILITYONE SUPPORT CONTRACTOR - RELEASE OF OFFEROR INFORMATION

NAVSUP FLC SAN DIEGO may utilize contractor support through the AbilityOne Program, as needed, to perform contract closeout functions for this acquisition. Information, including business sensitive/confidential or proprietary data, that the offeror provides to the government or information already in the possession of the government may be viewed and utilized by the AbilityOne Program support contractor personnel during the course of its contract performance. The information that may be made available to the support contractor may include, for example, pricing and technical proposals, historical contract, pricing and performance information, Commercial Asset Visibility (CA V) reporting information and similar data/information.

By submission of a proposal in response to this solicitation, the offeror and its subcontractors consent to a release of their business sensitive/confidential or proprietary data to the government's AbilityOne Program support contractor personnel. AbilityOne will have a Non-Disclosure/Non-Use Agreement in place with the Government in order to comply with DFARS 252-227-7025. The offeror retains the right to engage AbilityOne in a non-disclosure agreement pursuant to DFARS 252.227-7025(b)(5)(iv).

SUPTXT204-9400(4-22) CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, INFORMATION TECHNOLOGY (IT) SYSTEMS OR PROTECTED HEALTH INFORMATION

The security text does not apply in cases where the contractor/vendor does not have access to Navy Marine Corps Intranet (NMCI) computers, is not issued a Common Access Card (CAC) and is involved in training or other short term duties of less than 30 days duration that allow for the use of a visitor request. In these cases, the government employee must submit a Visitor Access Request (VAR) to the main gate or applicable processing entity for your facility and assume responsibility to escort those without CAC Credentials.

This local text does not apply to non-United States (U.S.) Nationals (foreign nationals) who are contractor employees performing work overseas. This text is applicable to the U.S. Nationals living in the U.S. or overseas who are performing work on a Navy contract.

The investigation of a non-U.S. national at a foreign location must be consistent with a National Agency Check with Written Inquiries (NACI), to the extent possible and include a fingerprint check against the Federal Bureau of Investigation (FBI) criminal history database, an FBI investigations file (name check) search and a name check against the terrorist screening database. Also, the above cited reference notes that Foreign Nationals may not be granted CAC credentials until completion of their investigation and not in the interim.

Per Department of Defense Memorandum (DoDM) 5200.2, Department of Defense (DoD) components must initiate and ensure completion of a background investigation before applying the credentialing standards to a non-U.S. national at a foreign location. The background investigation must be favorably adjudicated before a CAC can be issued to a non-U.S. national at a foreign location. The type of background investigation may vary based on standing reciprocity treaties concerning identity assurance and information exchanges that exist between the U.S. and its allies or agency agreements with the host country.

CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, IT SYSTEMS OR PROTECTED HEALTH INFORMATION

Executive Order 13467, Reforming Processes Related to Suitability for Government Employee, Fitness for Contractor Employees and Eligibility for Access to Classified National Security Information, Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

APPLICABILITY

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense (OSD), the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components").

Each contractor employee providing services at a Navy command under this contract is required to obtain a DoD CAC. Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

ACCESS TO FEDERAL FACILITIES

Definition. As used in this clause - Military installation means a base, camp, post, station, yard, center, or other activity under the jurisdiction of the Secretary of a military department, or, in the case of an activity in a foreign country, under the operational control of the Secretary of a military department or the Secretary of Defense (see 10 U.S.C. 2801(c)(4)).

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this clause will require a DoD CAC. When access to a base, facility or activity is required contractor employees shall in-process with the Command's Security Manager (CSM) upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

Training. Contractor employees who require routine physical access to a Federally controlled facility or military installation shall complete "Level I Antiterrorism Awareness Training" prior to gaining access to a facility and annually thereafter in accordance with DoDI O-2000.16 Vol. 1. In accordance with Department of Defense Instruction O-2000.16 Volume 1, DoD Antiterrorism (AT) Program Implementation: DoD AT Standards, Level I Antiterrorism Awareness Training shall be completed by:

1. Completion of "Level I Antiterrorism Awareness Training" available at <https://jkodirect.jten.mil/pdf/at1/launch.html>; or
2. Under the instruction of a qualified Level I Antiterrorism Awareness instructor; or
3. By providing a training certificate for "Level I Antiterrorism Awareness Training" training showing completion within the last calendar year.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, prior to being granted access to a Federally controlled facility or military installation.

Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts, including subcontracts for commercial items, when subcontractor performance requires routine physical access to a Federally-controlled facility or military installation.

OPERATION SECURITY (OPSEC)

It is DoD policy according to DoD Directive 5205.02E, "DoD Operations Security (OPSEC) Program," June 20, 2012, as amended to establish and maintain OPSEC programs to ensure national security-related missions and functions are protected.

Training: Contractor employees shall comply with all DoD OPSEC requirements and complete "OPSEC Awareness for Military Members, DoD Employees and Contractor" training within 30 days of onboarding the contract and annual refresher training thereafter. Training shall be completed through a DoD sponsored and certified computer or web-based learning instruction available at <https://securityawareness.usalearning.gov/opsec/index.htm>.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after training is completed by all employees and subcontractor personnel.

START-UP PERIOD

All contractor resource onboarding documents must be submitted via the prime contractor. The prime contractor shall make all necessary preparations to assume full responsibility for productive performance as of the performance start date.

Definition of "productive":

- a. OF-306 signed by contractor employee
- b. FD-258 Fingerprint Card (Contingent upon availability of electronic fingerprinting submission)
- c. Completed Electronic Investigation (e-QIP)
- d. All contractor employees with need for a Common Access Card (CAC) must have an active Defense Information System for Security (DISS) profile.
- e. Common Access Card (CAC)
- f. DISS Visit Request submitted (Contingent upon classification of work being performed, Confidential, Secret, Top Secret).

Note (1): Invoicing by the contractor will begin as of the commencement of the performance period of services and no reimbursement will be paid by the government for efforts expended during the start-up period.

Note (2): Foreign Nationals are not allowed access to the functional/system side of Enterprise Resource Planning (ERP).

ACCESS TO DOD INFORMATION TECHNOLOGY (IT) SYSTEM

In accordance with DON CIO Memorandum (IT LEVEL DESIGNATION ON DD FORM 2875 SYSTEM AUTHORIZATION ACCESS REQUEST) 08 September 2020, contractor employees who require access to Department of the Navy (DoN) or DoD networks are categorized as Privileged, Enhanced, or Authorized users. All user level accesses may include positions which require access to Controlled Unclassified Information (CUI). CUI includes sensitive information protected under the Privacy Act, to include Protected Health Information (PHI). IT System levels are determined by the requiring activity's Command Information System Security Manager (ISSM)/Information Assurance Manager (IAM).

Contractor employees requiring privileged access, (when specified by the terms of the contract) require a Tier 5 (T5) or T5R equivalent investigation, which is a higher level investigation than the Tier 3 (T3) and T3R described below. Due to the privileged system access, an investigation suitable for High Risk national security positions is required. Individuals who have access to system control, monitoring, or administration functions (e.g. system administrator, database administrator) require training and certification to Information Assurance (IA) Technical Level 1, and must be trained and certified on the Operating System or Computing Environment they are required to maintain.

Contractors requiring Enhanced access, (when specified by the terms of the contract) require a T3, T3R, or equivalent investigation, which is a higher level investigation than the Tier 1 (T1) described below. Due to the enhanced system access, an investigation suitable for Moderate Risk national security positions is required.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy CSM and ISSM/IAM manager upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The decision to authorize access to a government IT system/network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the Contracting Officers Representative (COR) shall sign the SAAR-N as the supervisor.

The SAAR-N shall be forwarded to the CSM upon contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all contractor employees requiring access complete annual Cyber Awareness training, and maintain a current requisite background investigation. The contractor's security representative shall contact the CSM for guidance when reinvestigations are required.

INTERIM ACCESS

The CSM may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

DENIAL OR TERMINATION OF ACCESS

The potential consequences of any requirement under this clause including denial or termination of physical or system access in no way relieves the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this

clause in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally-controlled information system/network and/or to government information, meaning information not authorized for public release.

ACCESS TO CONTROLLED UNCLASSIFIED INFORMATION

Safeguarding sensitive unclassified information is critical to achieve NAVSUP Modernization efforts and deliver cutting-edge and uncompromised capabilities. The Secretary of Defense's operations security (OPSEC) campaign plan stresses the importance of protecting controlled unclassified information (CUI). CUI encompasses OPSEC, critical technology, intelligence, and personally identifiable information that, if not properly identified, marked, and controlled, could impair NAVSUP's ability to conduct its mission. Contractor employees with access to Controlled Unclassified Information (CUI) shall comply with DoDI 5200.48 - Controlled Unclassified Information (CUI) and complete DoD approved initial and annual refresher CUI training.

1. Whenever Government provides CUI to, or CUI is generated by, non-DoD entities, all CUI records must be handled as required by the approved mandatory disposition authority.
2. All CUI records must follow the approved mandatory disposition authority whenever the Government provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and the DoDI 5200.48.
3. Contractor employees shall monitor CUI aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information.
4. Contractor employees shall submit unclassified government information for review and approval for release in accordance with the Standard DoD Component Processes, DoDI 5230.09, and DoDM 5205.07, Volume 1.

CONTRACTOR'S SECURITY REPRESENTATIVE

The contractor shall designate an employee to serve as the contractor's security representative. Within three (3) work days after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the contractor's security representative. The contractor's security representative shall be the primary point of contact on any security matter. The contractor's security representative shall not be replaced or removed without prior notice to the Contracting Officer and CSM.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. If the Security Office validates the contractor's position is Non-Critical Sensitive or if the IT system user level is determined to be Enhanced, at a minimum, each contractor employee must be a US citizen and have a favorably completed T3, T3R, or equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or Enhanced position. The investigation consists of a standard National Agency Check and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or Enhanced position is required to complete:

- SF-86 Questionnaire for National Security Positions (or equivalent Office of Personnel Management (OPM) investigative product)
- Two FD-258 Applicant Fingerprint Cards or electronic fingerprint submission (preferred))
- Original Signed Release Statements

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure investigations remain current (not older than ten (10) years) throughout the contract performance period. The Contractor's Security Representative shall contact the CSM for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements ALL contractor employees shall in-process with the CSM upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy Command's ISSM/IAM. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The SAAR-N shall be forwarded to the CSM upon the contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential or provide the required documentation shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Cyber Awareness training, and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the CSM. The CSM will review the submitted documentation for completeness prior to submitting it to the OPM. Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The CSM will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

For classified contracts, if the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a Visit Access Request (VAR) via the Defense Information Security System (DISS). If the contractor employee does not have a current favorably adjudicated investigation, the contractor shall submit the Visit Access Request in DISS until the contractor employee has at a minimum an interim clearance. If the contract only requires access to unclassified information, even if the contractor takes a DISS "owning" role over the contractor employee, the Navy Command will also take a DISS "owning" role over the contractor employee during the hiring process and for the duration of assignment under that contract. If the contract requires access to classified information, the contractor's Facility Security Office (FSO) will take a DISS "ownership" role and the Navy command will take a DISS "servicing" role during the hiring process and the duration of assignment under that contract. All VARs requires annual renewal for the duration of the employee's performance under the contract.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO OR PERFORMING NON-SENSITIVE DUTIES

Contractor employee whose work is unclassified and non-sensitive (e.g., performing certain duties such as lawn maintenance, vendor services, etc...) and who require physical access to publicly accessible areas to perform those duties shall meet the following minimum requirements:

- Must be either a U.S. citizen or a U.S. permanent resident with a minimum of 3 years of legal residency in the U.S. (as required by the Deputy Secretary of Defense DTM 08-006 or its subsequent DoD Instruction (INST)) and
- Must have a favorably completed NACI or T1 investigation or equivalent including a FBI fingerprint check prior to installation access.

To be considered for a favorable trustworthiness determination, the CSR must submit for all employees each of the following:

- SF-85 Questionnaire for Non-Sensitive Positions
- Two FD-258 Applicant Fingerprint Cards (or the preferred method - electronic fingerprint submission)
- Original Signed Release Statements

The contractor shall ensure each individual employee has a current favorably completed NACI or T1 equivalent investigation, or ensure successful FBI fingerprint results have been gained and investigation has been processed with OPM.

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date may result in delaying the individual's start date.

SUPTXT237-9400(1-92) SUBSTITUTION OR ADDITION OF PERSONNEL

(a) The Contractor agrees to assign to the contract those persons whose resumes, personnel data forms, or personnel qualification statements were submitted as required by Section L to fill the requirements of the contract. No substitution or addition of personnel shall be made except in accordance with this clause.

(b) The Contractor agrees that: during the first 30 days of the contract performance period no personnel substitutions will be permitted unless such substitutions are necessitated by an individual's sudden illness, death, or termination of employment. In any of these events, the Contractor shall promptly notify the Contracting Officer and provide the information required by paragraph (d) below.

(c) If personnel for whatever reason become unavailable for work under the contract for a continuous period exceeding 30 working days, or are expected to devote substantially less effort to the work than indicated in the proposal, the Contractor shall propose a substitution of such personnel, in accordance with paragraph (d) below.

(d) All proposed substitutions shall be submitted, in writing, to the Contracting Officer at least 15 days (30 days if a security clearance must be obtained) prior to the proposed substitution. Each request shall provide a detailed explanation of the circumstances necessitating the proposed substitution, a complete resume for the proposed substitute and any other information required by the Contracting Officer to approve or disapprove the proposed substitution. All proposed substitutes (no matter when they are proposed during the performance period) shall have qualifications that are equal to or higher than the qualifications of the person being replaced.

(e) In the event a requirement to increase the specified level of effort for a designated labor category, but not the overall level of effort of the contract occurs, the Contractor shall submit to the Contracting Officer a written request for approval to add personnel to the designated labor category. The information required is the same as that required in paragraph (d) above. The additional personnel shall have qualifications greater than or equal to at least one (1) of the individuals proposed for the designated labor category.

(f) The Contracting Officer shall evaluate requests for substitution and addition of personnel and promptly notify the Contractor, in writing, whether the request is approved or disapproved.

(g) If the Contracting Officer determines that suitable and timely replacement of personnel who have been reassigned, terminated or have otherwise become unavailable to perform under the contract is not reasonably forthcoming or that the resultant reduction of productive effort would impair the successful completion of the contract or the delivery order, the contract may be terminated by the Contracting Officer for default or for the convenience of the Government, as appropriate. Alternatively, at the Contracting Officer's discretion, if the Contracting Officer finds the Contractor to be at fault for the condition, he may equitably adjust (downward) the contract price or fixed fee to compensate the Government for any delay, loss or damage as a result of the Contractor's action.

SUPTXT243-9400(1-92) AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicate with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof.

ORGANIZATIONAL CONFLICT OF INTEREST CLAUSE

(a) **Introduction.** In accordance with Federal Acquisition Regulations (FAR Part 9.5), both the Contractor and the Contracting Officer have an affirmative duty to identify and mitigate actual and potential organizational conflicts of interest (OCI). The purpose of this clause is to ensure that the Contractor (1) is not biased because of its financial, contractual, organizational, or other interests which relate to the work under this contract, and (2) does not obtain any unfair competitive advantage over other parties by virtue of its performance of this contract.

(b) **Scope.** The restrictions described herein shall apply to performance or participation by the Contractor, in the activities covered by this clause as a prime contractor, subcontractor, co-sponsor, joint venture, consultant, or in any similar capacity. The financial, contractual, organizational, and other interests of Contractor personnel performing work under this contract shall be deemed to be the interests of the Contractor for the purposes of determining the existence of an Organizational Conflict of Interest.

(c) Definitions.

(1) "Contractor" means the firm awarded this contract or task order, its affiliates, joint ventures involving the firm, any entity with which the firm may hereafter merge or affiliate, and any other successor or assignee of the firm;

(2) "Offeror" means any firm engaged in, or having a known or prospective interest in, participating as an offeror in response to any solicitation related to or resulting from the procurement;

(3) "Affiliates" means employees, agents, or officers of the Contractor, its subsidiaries or parent companies, and first tier subcontractors involved in performance of this contract. For the purpose of this clause, affiliation occurs when a business concern is controlled by or has the power to control another or when a third party has the power to control both;

(4) "Interest" means organizational or financial interest;

(5) "Term of this task order" means the period of performance of any task order issued with this restriction, including any extensions thereto; and

(6) "Contracting Officer" is the warranted Government official signing this contract or task order; he or she will be identified by name and will be signing the contract or task-order provision incorporating this Organizational Conflict of Interest clause.

(d) **Warranty Against Existing Conflicts of Interest.** The warrant and disclosure requirements of this paragraph apply with full force to both the Contractor and all subcontractors. By submitting a proposal in response to this contract, the Contractor warrants that to the best of the Contractor's knowledge and belief, there are no relevant facts or circumstances which would give rise to an organizational conflict of interest, as defined in FAR Subpart 9.5, and that the Contractor has disclosed all relevant information regarding any actual or potential conflict of interest.

(e) **Disclosure of Potential Conflicts of Interest.** The Contractor recognizes that during the term of this contract, conditions may change which may give rise to the appearance of a new conflict of interest. The Contractor agrees it shall make an immediate and full disclosure, in writing, to the Contracting Officer of any potential or actual organizational conflict of interest or the existence of any facts that may cause a reasonably prudent person to question the Contractor's impartiality because of the appearance or existence of bias or an unfair competitive advantage. Such disclosure shall include a description of the actions the Contractor has taken or proposes to take in order to avoid, neutralize, or mitigate any resulting conflict of interest.

(f) **Contracting Restrictions.** The Contractor will have access to business sensitive information, including, but not limited to budget estimates, allocations/appropriations data, project or program cost estimates, and contract cost estimates. To ensure objectivity, the Contractor is precluded from participation in any capacity in Government contractual efforts (solicited or unsolicited) where the information that the Contractor had access to during the course of performance under this contract may give it an unfair advantage in developing a competitive proposal. Furthermore, the Contractor cannot be a subcontractor or consultant to the prospective offerors with respect to any such contractual efforts. The term of this prohibition shall be effective for the term of this contract.

(g) **Access to and use of information.**

(1) The Contractor agrees, in the performance of this contract, to keep the information furnished by the Government or acquired/developed by the Contractor in performance of the contract and designated by the Contracting Officer or the Contracting Officer's Representative, in the strictest confidence. The Contractor also agrees not to publish or otherwise divulge such information, in whole or in part, in any manner or form, nor to authorize or permit others to do so, taking such reasonable measures as are necessary to restrict access to such information while in the Contractor's possession, to those employees needing such information to perform the work described herein, i.e., on a "need to know" basis. The Contractor agrees to immediately notify the Contracting Officer in writing in the event that the Contractor determines or has reason to suspect a breach of this requirement has occurred.

(2) The Contractor shall have each and every employee accessing information that is subject to these restrictions sign a "non-disclosure agreement (NDA)." These NDAs shall be maintained by the Contractor and shall be available for review/submission to the Contracting Officer upon request. These NDAs must be maintained by the Contractor for the life of the contract plus five-years (5). Before destroying these documents, the Contractor must contact the Contracting Officer for further guidance - these documents may still be documentary evidence to be preserved in the case of litigation. In which case, the documents may have to be maintained in perpetuity. If for some reason, the documents cannot be maintained for the time frames set forth above, the Contractor shall notify the Contracting Officer for further guidance.

(3) In addition, the Contractor agrees that to the extent it receives or is given access to proprietary data, data protected by the Privacy Act of 1974 (5 U.S.C. 552a), or other confidential or privileged technical, business, or financial information under this contract, it shall treat such information in accordance with any restrictions imposed on such information. Contractor agrees to enter into company-to-company agreements to protect another company's information from unauthorized use or disclosure for as long as it is considered proprietary by the other company, and to refrain from using the information for any purpose other than that for which it was furnished. For information purposes, the Contractor shall furnish copies of these agreements to the Contracting Officer. These agreements are not intended to protect information which is available to the Government or to the Contractor from other sources and information furnished voluntarily without restriction.

(h) **Remedies.** The Contracting Officer may terminate this contract for convenience, in whole or in part, if the Contracting Officer deems such termination necessary to avoid, neutralize or mitigate an actual or apparent organizational conflict of interest. If the Contractor fails to disclose facts pertaining to the existence of a potential or actual organizational conflict of interest or misrepresents relevant information to the Contracting Officer, the Government may terminate the contract for default, suspend or debar the Contractor from Government contracting, or pursue such other remedies as may be permitted by law or this contract.

(i) **Waiver.** Requests for waiver under this clause shall be directed in writing to the Contracting Officer and shall include a full description of the requested waiver and the reasons in support thereof. If it is determined to be in the best interests of the Government, the Contracting Officer may grant such a waiver in writing.

(j) **Subcontracts.**

(1) The Contractor shall include a clause, substantially similar to this clause, in all subcontracts calling for performance of work which is subject to the organizational conflict of interest restrictions identified in this clause, unless excused in writing by the Contracting Officer.

(2) Prior to the award under this contract of any subcontracts, the Contractor shall obtain from the proposed subcontractor the disclosure of all financial, contractual, organizational, or other interests which relate to the work under this contract, and shall determine in writing whether the interests disclosed present an actual or significant potential for an organizational conflict of interest. Where an actual or significant potential organizational conflict of interest is identified, the Contractor shall take actions to avoid, neutralize, or mitigate the organizational conflict to the satisfaction of the Contractor. If the conflict cannot be avoided or neutralized, the Contractor must obtain the approval of the Contracting Officer prior to entering into the subcontract.

Section I - Contract Clauses

All applicable clauses and provisions established in the basic SeaPort NxG contract are hereby incorporated by reference and are considered to be in full force and effect as if they were incorporated in full.

52.204-2 Security Requirements (MAR 2021)
52.217-5 Evaluation of Options (Jul 1990)
52.219-14 Limitations on Subcontracting (Oct 2022)
52.219-27 Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program. (DEVIATION 2024-O0002, Revision 1)
52.224-3 Privacy Training (Jan 2017)
52.228-5 Insurance-Work on a Government Installation (Jan 1997)
52.237-2 Protection of Government Buildings, Equipment, and Vegetation. (Apr 1984)
252.204-7000 Disclosure of Information (OCT 2016)
252.204-7003 Control of Government Personnel Work Product (APR 1992)
252.204-7012 (Dev) Safeguarding Covered Defense Information and Cyber Incident Reporting (DEVIATION 2024-O0013, REVISION 1)
252.204-7018 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services (Jan 2021)
252.204-7019 Notice of NIST SP 800-171 DoD Assessment Requirements (NOV 2023)
252.204-7020 NIST SP 800-171 DoD Assessment Requirements (Jan 2023)
252.222-7006 Restrictions on the Use of Mandatory Arbitration Agreements (JAN 2023)
252.232-7007 Limitation of Governments Obligation (APR 2014)

52.217-8 Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the time prior to contract expiration.

(End of clause)

52.217-9 Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 day before the completion of the base period; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 1 day before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months.

(End of clause)

52.232-18 Availability of Funds (Apr 1984)

Funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract and until the Contractor receives notice of such availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/>

DFARS Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of provision)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/>
DFARS Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (DEC 2018)

(a) Definitions. As used in this clause--

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall--

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items--

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial item financing, submit a commercial item financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

To be completed at time of award

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section J - List of Attachments

Exhibits:

Id	Exhibit Name	Exhibit Description	Reference Identifier	Date	Line Item
A	1.17 CDRL 0001 - Budget Documents_15JUL2025	Contract Data Requirements List (CDRL)		16 Jan 2026	
B	1.17 CDRL 0002 - Conference Support Documents-31JUL2025_Rev A	Contract Data Requirements List (CDRL)		16 Jan 2026	
C	1.17 CDRL 0003 - MAP Presentation_31JUL2025_Rev A	Contract Data Requirements List (CDRL)		16 Jan 2026	
D	1.17 CDRL 0004 - Monthly Financial and Status Report_31JUL_Rev A	Contract Data Requirements List (CDRL)		16 Jan 2026	
E	1.17 CDRL 0005 - Reports and Briefings_31JUL2025_Rev A	Contract Data Requirements List (CDRL)		16 Jan 2026	
F	1.17 CDRL 0006 - Staff Training_31JUL2025_Rev A	Contract Data Requirements List (CDRL)		16 Jan 2026	
G	1.17 CDRL 0007 - Trip Report_31JUL2025_Rev A	Contract Data Requirements List (CDRL)		16 Jan 2026	

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	1.17 CNAP N8 Price Template			16 Jan 2026
02	1.17 CAP FFP			16 Jan 2026

Section K - Representations, Certification, & Other Statements

The requirement for Annual Representations and Certifications at 52.204-8 applies at the basic multiple award contract (MAC) level for each offeror. Offerors are not required to submit representation or certifications in response to this solicitation or its subsequent Task Order award, if any. All requests for representation or certification shall come from the MAC Contracting Officer in accordance with the terms of the basic contract.

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (Nov 2021)

252.203-7005 Representation Relating to Compensation of Former DoD Officials (SEP 2022)

252.204-7016 Covered Defense Telecommunications Equipment or Services --Representation (Dec 2019)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services--Representation (May 2021)

The Ordering Officer will consider the offerors size/socioeconomic status as defined by the Seaport NxG ConOps.

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

General Instructions: This solicitation is issued as a Service Disabled Veteran Owned Small Business (SDVOSB) set-aside under Seaport NxG using Fair Opportunity under FAR 16.505. Only offers received from eligible Seaport NxG task order holders will be eligible for award and the award resulting from this solicitation will only be made to concerns eligible under the SDVOSB Program in accordance with FAR 52.219-27.

The Government contemplates award of a single SeaPort NxG task order with a combination of Firm-Fixed-Price (FFP) and Cost-Reimbursement (cost only) CLINs. The resultant task order is for support services in accordance with the Performance Work Statement (PWS) provided herein.

The anticipated task order award under this solicitation will be made in accordance with Federal Acquisition Regulations (FAR) Part 16.505, Ordering, following the policies and procedures for solicitation, evaluation, and award.

The Source Selection process for this task order will be based on a Tradeoff source selection process with the award being made to the Offeror whose proposal represents the best value to the Government.

The period of performance will consist of a one-year base period followed by four one-year option periods. All of the option periods, including the 6-month extension under FAR clause 52.217-8, will be evaluated during the source selection process.

Questions regarding any aspect of this procurement must be submitted in writing via email only and addressed to christine.jordan@navy.mil. The subject line of all email correspondence should state: **RFP N00244-26-R-3101 QUESTIONS** in the subject line.

Any exception to the Government's technical requirements/specifications and/or terms and conditions of this RFP, must be resolved prior to the solicitation closing date. Offerors that take exception to the Government's technical requirements, terms and conditions, omit any required information, or propose additional terms or conditions, without prior resolution with the Contracting Officer, may be eliminated from consideration. Alternate proposals are not authorized and will be rejected.

The Government intends to award a task order without exchanges. Notwithstanding this intent, the Government reserves the right, at its discretion, to request and require revised proposals from any or all offerors in accordance with FAR 16.505. The Government also reserves the right to change any of the terms and conditions in the RFP by an amendment at any time prior to award and to allow offerors to revise their proposals accordingly.

The Government reserves the right to reject all proposals received in response to a solicitation, if doing so is in the best interest of the Government.

Each Offeror's proposal is presumed to represent the Offeror's best efforts to comply with the solicitation requirements and provide the best price. The Offeror's initial proposal should contain the Offeror's best terms from a price standpoint. Clarity and completeness of the proposal are of the utmost importance. The proposal must be written in a practical, clear, and concise manner. It must use quantitative terms whenever possible and must avoid qualitative adjectives to the maximum extent possible. The proposal shall be complete as submitted, and not include references to data or information previously submitted. Data previously submitted to the Navy, if any, will not be incorporated "by reference" into the offer and will not be considered in the evaluation of the proposal.

The proposal must demonstrate the Offeror's familiarity with the detailed aspects of the requirements, and clearly show that the Offeror understands all of the requirements. Offerors are cautioned against restating the PWS in their proposal, particularly with regards to the Factor I: Technical; and must state how all solicitation and PWS requirements will be met. Statements such as "the Offeror understands", and "the Offeror shall/can comply", along with responses that paraphrase the solicitation, are inadequate. The use of phrases such as "standard practices" (with a specific Government reference or industry reference) does not reflect the Offeror's understanding of requirements and will likely result in an "Unacceptable" evaluation rating.

Proposals must be sufficiently detailed to allow the Technical Evaluation Board (TEB) to make a thorough evaluation of the proposal and arrive at a determination about the extent to which the offeror will be able to provide quality performance in accordance with the PWS.

Proposal Format and Content: Offerors shall submit their proposals in the following format:

Volume I- Signed Offer - Seaport NxG Solicitation

Volume II - Technical Proposal

Volume III - Past Performance

Volume IV - Price

Volume Name	Number of Copies	Page Limit
Volume I - Proposal /Complete Solicitation	(1)	Unlimited
Volume II - Technical**	(1)	(30) pages, excluding resumes, staffing list, letters of intent, employment agreements, title page, table of contents, and cross-reference index list
Volume III - Past Performance	(1)	(10) pages, excluding Offeror's Past Performance Data (OPPD) and CPARS
Volume IV - Price	(1)	Unlimited (Excel) - Submission may also include 8-page max explanatory word document. Back-up documents/attachments do not count against the 8-page limit.

**Volume II must not contain any price or cost information

**Page limits do not include cover page or table of contents. However, these pages shall not include any material information that needs to be evaluate under the evaluation factors.

All offers must be submitted via e-mail to Contract Specialist Ms. Christine Jordan, e-mail address christine.jordan@navy.mil and must show the RFP Number, Offeror's name, and the word "PROPOSAL" in the Subject Line of the email.

The proposal should be single-spaced typed (one side only) using Microsoft Word minimum 12-point Font text. Graphs/tables/charts may be included as necessary and may be in 10-point font text. Hyperlinks may not be used.

All pages in each volume shall be numbered sequentially (i.e., 1-30); pages identified above that are not included in the page limitation should be numbered differently or not at all. The Government will only evaluate that part of the proposal that complies with the instructions set forth herein. For example, if the requirement is a maximum of 30 pages and an offeror submits 22 pages, the last two pages will not be read and/or evaluated.

Specific Volume Instructions:

Volume I - Proposal

Volume I consists of the offer. The offer must include a complete copy of the Solicitation. This volume shall be completely filled in and signed by the offeror. Contractors are required to provide an offer based on the most up to date information provided by the Government.

The proposal shall include a cover letter from the Offeror and each subcontractor. The following information shall be included in the cover letter:

- a. The company name, address, point of contact with telephone numbers, e-mail address, Contractor and Government Entity (CAGE) code, Unique Entity Identifier (UEI) number, and Tax Identification Number (TIN); and Seaport NxG contract number.
- b. Names, titles, telephone numbers and e-mail addresses of persons authorized to negotiate and signature of person authorized to sign the proposal (Not required for the Subcontractor) on the Offeror's behalf with the Government in connection with this solicitation;
- c. Proposal validity for 120 days;

The proposal shall also include:

- a. Completed Representations and Certifications of solicitation provisions or certification of completion within the offerors System of Award Management (SAM) profile; and
- b. Evidence of VETS 4212 compliance, and
- c. The offeror must submit the draft DD254 as part of their proposal. The offeror shall demonstrate that it either currently possesses a required Facility Security Clearance in accordance with the draft DD-254, or evidence that they are **willing and eligible** to obtain the required FCL security clearance, and
- d. (if applicable, an OCI mitigation plan)

Included in Volume I

The Offeror must state explicitly whether or not any exceptions are taken to the terms and conditions of the solicitation. If so, the Offeror shall list and provide its rationale for any such exception. Any comments or exceptions must be addressed in this section and may form the basis for an Offeror to be considered ineligible for award. Alternate proposals are not authorized and will be rejected.

OCI Mitigation Plan (if applicable)

In accordance with FAR 9.5, Offerors shall disclose all known potential or actual OCIs involving the Offeror's organization and any proposed Team Members (e.g., subcontractors or consultants).

- a) Offeror shall disclose, for instance, any conflicting roles potentially created by the Offeror's current or past involvement (within the past three (3) calendar years) with a CNAF contract or agreement, either as a prime or sub, and identify any contract/agreement requirements that might bias the Offeror's judgment or provide the Offeror with an unfair competitive advantage in future CNAF solicitations.
- b) Offeror shall submit a written OCI mitigation plan for all disclosed OCI(s), including identifying and describing the OCI(s), the action the Offeror has taken or proposes to take to avoid, neutralize, or mitigate the OCI(s) disclosed under subparagraph (a) in the context of each of the OCI limitations outlined in FAR 9.505-1 through FAR 9.505-4. The Government may require the Offeror to provide additional information to assist the Government in evaluating the Offeror's OCI mitigation plan.
- c) If the Government determines that the Offeror failed to disclose an OCI fully or failed to reasonably provide additional information requested by the Government to assist in evaluating the Offeror's OCI mitigation plan, the Government may reject the proposal and withdraw it from consideration for award.

Volume II - Technical

The purpose of this section is to enable the Navy to assess the Offeror's technical understanding of and capability to perform, manage, and control tasks in the Performance Work Statement (PWS).

The Technical Proposal shall consist of no more than 30 pages, excluding resumes, letters of intent, employment agreements, title page, table of contents, and cross-reference index list. Offerors are cautioned that no more than the first 30 pages of their Technical Proposals will be evaluated. If any offer is not in compliance with the page limitation on Technical Proposals the extra pages will be removed and not evaluated. There shall be no price/cost information included in the Technical sections of the offer.

Factor I - Technical will consist of three (3) sub-factors:

Sub-factor 1: Technical Approach

Sub-factor 2: Management Plan

Sub-factor 3: Staffing

Clarity and completeness of the proposal are of the utmost importance. The proposal must be written in a practical, clear, and concise manner. It must use quantitative terms whenever possible and must avoid qualitative adjectives to the maximum extent possible. Offerors are cautioned against restating PWS requirements in their proposal, particularly with regard to technical requirements; and must state how all RFP and PWS requirements will be met. Statements such as "the offeror understands" and "the offeror shall/can comply", along with reference or industry references does not reflect that the offeror understands the requirements and will likely result in a diminished evaluation rating.

Sub-factor (1) - Technical Approach

The Offeror shall provide, in detail, an approach that will demonstrate the Offeror's understanding, methodology, and ability to perform all tasks listed in the PWS. The technical approach shall demonstrate that the Offeror can accomplish the specified work in a technically competent, timely, cost-effective manner with minimal risk to the Government. Offerors must address understanding of the deliverables to be produced in response to the requirements.

Offeror must provide evidence and details of knowledge in supporting the various tasks identified in the Performance Work Statement (PWS).

Sub-factor (2) - Management Plan

Offerors must address their methodology for managing the technical requirements identified in the PWS; management approach and task order administration including status reporting; the reporting chain of command, lines of authority, responsibilities designed to accomplish the proposed work effort, and methods for quality control and overall supervision.

Offerors shall provide a detailed description of their transition process, explaining how they will assume responsibility from the incumbent while mitigating performance risk. Offerors shall address their approach to transition-in and timeline to begin full performance of the task order.

Offerors must include a generic organizational chart which clearly depicts how the site will be staffed. The organizational chart must be accompanied by an explanation of the functional relationships and responsibilities, focusing on overall management and immediate supervision.

Offeror shall demonstrate their ability to provide continuity of support of the Contractor services and explain their ability to manage unplanned events and circumstances, such as unexpected employee departures. The offeror shall describe any risks associated with the PWS and any risks associated with implementation of the offeror's management approach; describing their techniques and actions to mitigate such risks; and explain whether the techniques and actions identified for risk mitigation have been successfully used by the offeror in the performance of prior efforts.

Each Offeror must address what role, if any, any subcontractor will play and their relationship with the prime contractor.

Offerors shall provide a Quality Control Plan (QCP) and address the following four areas:

- Self-monitoring quality assurance methods
- Performance measurement metrics
- Compliance with the PWS.
- Methodology for resolution of any quality discrepancies

Sub-factor (3) -Staffing

The Offeror shall provide a staffing plan explaining how they will provide proper staffing that 1) meets the qualifications listed in the PWS and 2) is capable of completing the tasks described in the PWS. The explanation must be sufficiently detailed to determine that all services will be provided in accordance with the PWS.

Offerors shall address their current staff retention rate and their ability to source, recruit, train, and retain employees who can perform the tasks in the PWS and provide information that will document the offeror's current strategies, such as fringe benefits, to maintain competent employees and reduce staff-turnover.

Offerors are encouraged to engage incumbent personnel if the contractor, after careful assessment, finds the incumbent personnel qualify to meet the requirements of the solicitation.

Offerors shall provide a resume for each key personnel the offeror proposes. Resumes shall not exceed two pages in length. Letters of intent are not included in the resume page count.

Personnel resumes shall emphasize knowledge, ability, and experience as they pertain to the services set forth in the PWS. Resumes shall include, at a minimum, the following information:

- Name;
- Present place of employment (if contingent hire, so note);
- Security clearance (if applicable);
- Proposed labor category;
- Experience and educational background;
- Unique skills, specific experience, and accomplishments that are directly applicable to the PWS; and
- Proposed application of the individual to the contract effort (i.e., full time or part time).

Desired qualifications and experience of each individual shall be appropriate to the proposed labor category. Required years of program related experience must be clearly shown in the resume and may be satisfied by concurrent experience.

For each person proposed who is not currently on the contractor or subcontractor's payroll, the Offeror shall provide a signed "Letter of Intent" with the individual's resume (not included in resume page count). Without the Letter of Intent, the Government considers the resume incomplete and will not consider it in the evaluation.

If the Offeror proposed personnel from a different labor category or by a different title, a cross-reference list is required to be provided in the offeror's proposal justifying the submission. The justification shall clearly state the basis for the deviation and rationale supporting the deviation. Failure to provide an adequate explanation may render the proposal ineligible for award.

Volume III - Past Performance

Offerors shall submit a document (10-pages maximum) listing relevant task orders/contracts (maximum of five, with at least two references for the prime contractor) completed during the last four years from the solicitation close. Offerors may submit performance data regarding current contract performance as long as a minimum of one year of performance has been completed as of the closing date of this solicitation.

The document shall include contract number, contract type, dollar value, brief description of the work, POC information, relevancy to the solicited requirement, and whether the contract was performed as the prime contractor or subcontractor.

Offerors shall contact their past performance references and request that each reference complete the "Offeror's Past Performance Data" (OPPD) Attachment. A prime contractor shall not submit an OPPD for one of its subcontractors nor shall a subcontractor submit an OPPD for their prime contractor. OPPDs received of this nature will not be accepted or evaluated. OPPDs shall be emailed directly from the reference to Christine Jordan at christine.jordan@navy.mil and should include the RFP Number, Offeror's name, and 'OPPD' in the Subject Line of the email. OPPDs submitted by the offeror or one of its subcontractors, will not be evaluated.

OPPD's are not mandatory but assist the Government in evaluating an offeror's past performance. CPARS may be submitted in lieu or in addition to OPPD's for any or all references.

In addition to the OPPD, offeror's may include in Volume III, a document listing all potential references. Information to be provided is reference name, address, phone number, email address, and other identifying information such as Contract Number and type of work performed.

Past Performance references may include federal, state, or local government and private contracts performed by the offeror for efforts similar to the Government requirement. Offerors are encouraged to provide information on problems encountered on the identified contracts and the corrective actions.

If the offeror possesses no relevant past performance, it must affirmatively state this fact in the Volume III submittal. An Offeror's failure to submit a Volume III - Past Performance may render their entire proposal unacceptable and not further considered for award.

Volume IV - Price

Each offeror's price proposal must be submitted in a Microsoft Excel format, unlocked with visible formulas. Do not submit this spreadsheet in PDF format.

The spreadsheet must list the factors used to calculate the billing rates for the period of performance. The spreadsheet shall provide the labor category, hours proposed, base labor rate, indirect rates, and profit. If the offeror intends to subcontract, the subcontractor's rolled-up labor rate shall be provided as well. An eight (8) page explanatory document may be included. No cost or pricing information shall appear in the Technical Proposal.

Offerors should use the hours provided in the Price Template attachment; however, if an offeror proposes less hours than those listed, then it must provide a narrative detailing why and how they can accomplish the requirements of the PWS with less personnel. The explanation must clearly demonstrate the offeror's ability to meet all goals and objectives set forth in the PWS. Failure to provide an adequate explanation may render the proposal ineligible for award.

Offerors must submit using the not to exceed (NTE) travel ceiling provided in the Price Template.

All CLINs must be rounded to the nearest whole dollar.

Offerors are instructed to price a six-month option at the end of the last period of performance. This six-month option shall be priced separately from the rest of the proposal. Therefore, please do not include this option pricing in the total proposed cost, it shall be independent of the proposal. The six-month option pricing shall not exceed 50% of the last option year. Should clause 52.217-8 OPTION TO EXTEND SERVICES be executed, the six-month option will be incorporated into the contract.

In addition, offerors shall include a compensation plan in accordance with FAR 52.222-46 Evaluation of Compensation for Professional Employees.

It is expected that this contract will be awarded based upon a determination that there is adequate price competition; therefore, the offeror is not required to submit or certify cost or pricing data (SF 1411) with its proposal. If, after receipt of proposal, the Contracting Officer determines that adequate price competition does not exist in accordance with FAR 15.403-1, the offeror shall provide certified cost or pricing data as requested by the Contracting Officer.

Section M - Evaluation Factors for Award

1. Basis for Award:

The Government anticipates award of a single Firm-Fixed-Price (FFP) task order with Cost Reimbursement CLINs for travel resulting from this solicitation. The solicitation will be a Seaport NxG SDVOSB set-aside and award will be made using a tradeoff source selection process and Fair Opportunity under FAR 16.505.

The Government will utilize the subjective Tradeoff source selection process. This process allows for a tradeoff between non-cost factors and cost/price which allows the Government to accept other than the lowest priced proposal or other than the highest technically rated proposal to achieve a best value contract award.

The basis for award of a contract as a result of this solicitation will be an integrated assessment by the Contracting Officer of the results of the evaluation based on the evaluation factors and their importance as indicated below. The integrated assessment will include consideration of the strengths and weaknesses of the proposals. The Government reserves such right of flexibility in conducting the evaluation as is necessary to assure placement of a contract is in the Government's best interest. Accordingly, the Government reserves the right to make award to other than the lowest cost or the highest rated offeror if the Government determines that doing so would result in the overall best value to the Government.

The contract resulting from this solicitation will be awarded to that responsible Offeror whose offer, conforming to the solicitation, in the Government's estimation, provides the greatest overall benefit in response to the requirement.

The Government intends to evaluate proposals and award based on initial proposals. Offerors that take exception to the Government's technical requirements, propose any additional term or condition, or omit any required information without prior resolution with the Contracting Officer might be eliminated from consideration. However, the Government reserves the right to conduct exchanges with any or all or a limited number of offerors, if necessary, and to permit such offerors to revise their proposals as permitted under FAR Part 16.

Vendors are hereby instructed that, regardless of any language that may be used in this solicitation, the task order evaluation and award will be conducted pursuant to FAR (S) 16.505 and will not use the formal source selection procedures of FAR Subpart 15.3.

Accordingly, procedures such as a competitive range determination, pre-award notifications to offerors excluded from a competitive range, pre-award debriefings, oral or written discussions with all offerors within a competitive range and requesting final proposal revisions from all offerors included within a competitive range are not required.

Offerors are advised that the Government reserves the right to reject any proposal that does not comply with proposal preparation /submission instructions contained in section L.

The Government will weigh the relative benefits of each proposal by giving the appropriate consideration to the three (3) evaluation Factors: Technical, Past Performance, and Price. The Technical Factor has three (3) Subfactors. A rating of "Unacceptable" in any factor or sub-factor will render the entire proposal ineligible for contract award.

2. Evaluation and Rating Criteria:

The Government will evaluate proposals based on the following:

Go/No Go Evaluation:

Facility Clearance Documentation/Evidence will be evaluated as either "acceptable" or "unacceptable" - Documentation/evidence of current Security Clearance in accordance with DD 254 (see Attachment) or **evidence demonstrating willingness and eligibility** to obtain required security through the Defense Security Service (DSS) upon award. This documentation/evidence will be evaluated on an acceptable or unacceptable standard and is not a weighted factor. Information related to the security/facility clearance process can be obtained by visiting www.dss.mil. A rating of unacceptable shall render the offeror ineligible for award and therefore will not be further evaluated under the Tradeoff Evaluation.

Evaluation of Organizational Conflicts of Interest Mitigation Plan (if applicable)

The Government will evaluate the Offeror's OCI submission as either "acceptable" or "unacceptable". The OCI submission includes the disclosure and, if applicable, the OCI mitigation plan. To receive an "acceptable" rating, the Government must determine that:

The Offeror has fully disclosed all actual or potential OCIs in accordance with FAR 9.5 and the instructions in Section L.

Any submitted OCI mitigation plan is deemed adequate by the Contracting Officer to effectively avoid, neutralize, or mitigate the identified OCI(s) to a degree that an unfair competitive advantage or biased judgment will not result.

A proposal that receives an "unacceptable" rating for the OCI evaluation will be deemed ineligible for award and will not be considered further for award.

Tradeoff Evaluation:

Factor I - Technical

Factor II - Past Performance

Factor III - Price

The factors are listed in descending order of importance and offerors are advised that, when combined, "Technical" and "Past Performance" are significantly more important than "Price".

Factor I "Technical" will consist of three (3) subfactors: Technical Approach, Management Plan, and Staffing, each of equal level of importance and each subfactor will be individually rated.

Factor I - Technical, will be given an overall score based on the ratings of the three (3) subfactors. A rating of "Unacceptable" in any subfactor will render the entire factor unacceptable. A proposal with an unacceptable Factor I rating will be deemed ineligible for award and will not be further evaluated under Past Performance or Cost.

Factor II - Past Performance, will be evaluated by assigning a relevancy rating for up to 5 recent past performance efforts submitted and assigning one overall rating for Past Performance Confidence. A proposal with a No Confidence past performance rating will be deemed ineligible for award and will not be further evaluated under price.

Factor III - Price, will be evaluated by comparing the total proposed price of acceptable offerors. In addition, the contracting officer may use any other FAR price analysis technique to determine if the proposed price is fair and reasonable.

Although price is significantly less important than a combined Technical and Past Performance, it should not be ignored. To the extent that the technical and past performance ratings of competing offerors are similar, such that the advantages of one proposal over another are minimal, a difference in price will take on increased significance in the best value decision.

2. Factor I - Technical:

The Government will assess the Offeror's Technical proposal with respect to its compliance with the solicitation requirements and the risk associated with the Offeror's approach through the assessment of the strengths, weaknesses, and deficiencies.

Offerors are on notice that well documented technical understanding, effective management approach, significant employee retention plan, and/or well-qualified staffing may be considered "strengths." However, Offerors are advised that the Government may give a higher rating only if the strength(s) represent a real value or benefit to the Government.

The following Factor (I) Sub-factors shall be rated individually with these ratings used to determine an overall rating for Technical. Of equal order of importance, the Technical sub-factors are:

Sub-factor (1) Technical Approach:

The Government will evaluate the technical understanding and approach to determine the offeror's overall understanding and ability to successfully accomplish the PWS requirements. The Government will evaluate the extent to which the Offeror's technical approach demonstrates the Offeror's ability to accomplish the specified work in a technically competent, timely, cost-effective manner with minimum risk to the Government. The narrative will be evaluated for a complete analysis of the performance requirements and explanation of the processes, best practices and other methods the Offeror proposes to use to meet each requirement stated in the PWS.

Sub-factor (2) Management Plan:

The Government will evaluate the degree to which the proposed approach shows clear and effective delineation of responsibility, authority, and communication through which the tasks will be managed for this requirement. The Government will also evaluate the Offeror's transition plan, approach to risk mitigation, ability to provide continuity of support, and manage unplanned events and circumstances. The Quality Control Plan will be evaluated for its ability to monitor performance with appropriate metrics to maintain compliance with the PWS and correct any quality discrepancies in a timely manner.

Sub-factor (3) Staffing:

The Government will evaluate the adequacy of the proposed staffing plan to complete the tasks in the PWS with staffing that meets the required qualifications and capable of competing the tasks in the PWS.

The Offeror's staff retention rate and employee retention strategies will be evaluated for the efficacy to maintaining competent employees and reducing staff turnover. The ability to demonstrate minimal turnover of personnel and retention of incumbent personnel may be considered a strength(s).

All proposed Key Personnel resumes will be evaluated to determine the extent to which the described knowledge, experience, and education are in accordance with the key personnel requirements.

EVALUATION: The Government will utilize a tradeoff source selection process using the adjectival ratings/descriptions in Table 1. to evaluate Factor I and its subfactors. Offerors receiving an UNACCEPTABLE rating for this factor will not be further evaluated for past performance or price. Inherent in the Factor I rating definition is a component for risk, reflecting the projected risk of the proposed approach to successfully perform the contract. To receive an "Acceptable" rating the proposal must clearly demonstrate that the offeror meets the requirements as defined by the PWS and all RFP attachments with, at worst, moderate risk.

The following table of Ratings/Definition/Description shall be used for the Technical/Risk Rating for each Sub-factor and for Factor (I). The overall Factor I (Technical) rating will be determined by evaluating the ratings for each of the sub-factors. The overall rating will be used for tradeoff analysis. No Technical Proposal may be given more than a marginal rating unless the proposal clearly shows that the offer meets requirement as defined by the PWS and all RFP attachments.

Table 1. Combined Technical/Risk Rating

Combined Technical /Risk Rating	
Adjectival Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate risk
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

* Offerors are reminded that receiving a score of "unacceptable" in any sub-factor will render the entire proposal ineligible for award.

3. Factor II - Past Performance:

The Government will evaluate the offeror's past performance to assess the Government's confidence in the Offeror's probability of successfully performing the requirements as outlined in this RFP. Past performance will be evaluated on a subjective, integrated assessment of recency, relevancy, and quality of past performance. All proposals will be rated for past performance utilizing the adjectival ratings in Table 3. Performance Confidence Assessments Rating below.

The government's assessment of performance risk is not intended to be the product of a mechanical or mathematical analysis of an offeror's performance on list of contracts, but rather the product of subjective judgment of the government after it considers all available relevant and recent information.

In conducting the Past Performance evaluation, the Government reserves the right to use both the information provided in the Offeror's Past Performance proposal and the information gathered from other sources available to the Government. These include, but are not limited to the Contractor Performance Assessment Reporting System (CPARS), or other databases; interviews with Program managers /Contracting Officers, etc.

There are three aspects to past performance evaluation: recency, relevancy, and quality. Past performance references not found to be recent will not be further evaluated for relevancy, and references not found to be relevant will not be further evaluated for quality.

Each past performance reference will be evaluated to determine recency, with recent past performance being performance under contracts accomplished within the past four (4) years from solicitation close.

The Government will evaluate the relevancy of each past performance reference, with relevant past performance being performance under contracts for work that is for similar services, scope, complexity, dollar value, and/or contract type. Each past performance reference will be assigned an adjectival rating in accordance with the below table:

Table 2. Past Performance Relevancy Rating

Past Performance Relevancy Ratings	
Adjectival Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.

Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

Past performance of greater relevancy will typically be a stronger predictor of future success and have more influence on the past performance confidence assessment than past performance of lesser relevance. Past performance reference that has no relevance to the instant requirement will not be evaluated favorably or unfavorably and will not be considered in the overall assessment of Past Performance Confidence. However, the number of more relevant contracts an offeror has, the higher the confidence may be.

Each past performance reference under each offeror's Past Performance submission that is found to have at least some relevance to the instant requirement will be evaluated to determine the quality of the offeror's performance under that reference. Quality of the relevant past performance will form the basis for the Performance Confidence Assessment. The quality of performance that has no relevance to the instant requirement will not be considered in the overall assessment of Performance Confidence. An offeror that is determined to have no relevant Past Performance will be rated as Unknown Confidence (Neutral).

EVALUATION: The Government will assign an overall past performance confidence rating for each proposal using the adjectival ratings/descriptions in Table 3. This rating will be the Offeror's overall rating for Past Performance. An overall rating of "No Confidence" will render the offeror ineligible for award and it will not be further evaluated for Price.

Table 3. Performance Confidence Assessments Rating

Adjectival Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort
Neutral Confidence	No recent/relevant performance record is available, or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the offeror may not be evaluated favorably or unfavorably on past performance. Such offerors will receive a rating of "Neutral Confidence."

Offerors are reminded that if they possess no relevant past performance, they must affirmatively state this fact. A proposal that omits Factor II may be given a rating of "No Confidence" and render the entire proposal ineligible for award.

4. Factor III - Price:

Offerors are reminded that a finding of "Unacceptable" in either Factor I or "No Confidence" in Factor II will result in the entire proposal being determined ineligible for award, and therefore will not be further evaluated under Factor III - Price.

Although, when combined, the non-price factors Factor I (Technical), and Factor II (Past Performance) are significantly more important than Factor III (Price), Factor III - Price's degree of importance will increase with the degree of equality of proposals in relation to Technical and Past Performance. The significance of the non-price factors will also decrease when the offeror's price is so significantly high as to diminish the value of the technical superiority to the Government.

Price/Cost Analysis will be performed to determine whether the proposed prices are fair and reasonable using one or more of the techniques listed in FAR 15.404-1. In order for an offeror to be eligible for award, the offeror shall propose on all CLINs. A price proposal that leaves a blank for any CLIN will not be considered for award.

Offerors that fail to provide an adequate explanation for proposing less hours than provided in the Price Template may be determined ineligible for award.

Price will be evaluated by totaling the prices for all line items, including option periods, for which the Government has requested the offeror provide a price. Option prices will be evaluated at time of award. Evaluation of the options WILL NOT obligate the Government to exercise the options.

As part of the Cost/Price Factor evaluation, the Government will evaluate the Option to Extend Services under FAR 52.217-8 by including six (6) months (50 percent) of the Offerors evaluated price for Option Year 4. The Government may choose to exercise the extension of services option within the limits and at the rates specified in the contract for periods up to and shorter than 6-months but not exceeding 6-months in aggregate.

Offerors are also reminded that the 6-month option under clause 52.217-8 OPTION TO EXTEND SERVICES WILL NOT be incorporated at the time of award and should be priced separately from the rest of the proposal and not included in the total proposed cost. The six-month option pricing should not exceed 50% of the last option year.

A realism analysis will also be conducted of the proposed compensation plan, including the professional compensation rates, in accordance with FAR 52.222-46.

FAR 52.222-46 Evaluation of Compensation for Professional Employees (Feb 1993)

(a) Recompensation of service contracts may in some cases result in lowering the compensation (salaries and fringe benefits) paid or furnished professional employees. This lowering can be detrimental in obtaining the quality of professional services needed for adequate contract performance. It is therefore in the Government's best interest that professional employees, as defined in 29 CFR 541, be properly and fairly compensated. As part of their proposals, offerors will submit a total compensation plan setting forth salaries and fringe benefits proposed for the professional employees who will work under the contract. The Government will evaluate the plan to assure that it reflects a sound management approach and understanding of the contract requirements. This evaluation will include an assessment of the offeror's ability to provide uninterrupted high-quality work. The professional compensation proposed will be considered in terms of its impact upon recruiting and retention, its realism, and its consistency with a total plan for compensation. Supporting information will include data, such as recognized national and regional compensation surveys and studies of professional, public and private organizations, used in establishing the total compensation structure.

(b) The compensation levels proposed should reflect a clear understanding of work to be performed and should indicate the capability of the proposed compensation structure to obtain and keep suitably qualified personnel to meet mission objectives. The salary rates or ranges must take into account differences in skills, the complexity of various disciplines, and professional job difficulty. Additionally, proposals envisioning compensation levels lower than those of predecessor contractors for the same work will be evaluated on the basis of maintaining program continuity, uninterrupted high-quality work, and availability of required competent professional service employees. Offerors are cautioned that lowered compensation for essentially the same professional work may indicate lack of sound management judgment and lack of understanding of the requirement.

(c) The Government is concerned with the quality and stability of the work force to be employed on this contract. Professional compensation that is unrealistically low or not in reasonable relationship to the various job categories, since it may impair the Contractor's ability to attract and retain competent professional service employees, may be viewed as evidence of failure to comprehend the complexity of the contract requirements.

(d) Failure to comply with these provisions may constitute sufficient cause to justify rejection of a proposal.

(End of provision)

6. Definitions

Best Value means the expected outcome of an acquisition that, in the Government's estimation, provides the greatest overall benefit in response to the requirement. See FAR 2.101.

Clarifications are limited exchanges between the Government and offerors that may occur when award without discussions is contemplated.

Communications are exchanges, between the Government and offerors, after receipt of proposals, leading to the establishment of the competitive range.

Competitive Range is all the most highly rated proposals (based on the rating of each proposal against all evaluation criteria), unless the range is further reduced for purposes of efficiency.

Deficiency is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Discussions are negotiations conducted in a competitive acquisition. Discussions take place after establishment of the competitive range.

Evaluation Notice (EN) is the PCO's written notification to the offeror for purposes of clarifications, communications, or in support of discussions.

Performance Confidence Assessment is an evaluation of the likelihood (or Government's confidence) that the offeror will successfully perform the solicitation's requirements; the evaluation is based upon past performance information.

Recency, as it pertains to past performance information, is a measure of the time that has elapsed since the past performance reference occurred. Recency is generally expressed as a time period during which past performance references are considered relevant.

Relevancy, as it pertains to past performance information, is a measure of the extent of similarity between the service/support effort, complexity, dollar value, contract type, and subcontract/teaming or other comparable attributes of past performance examples and the source solicitation requirements; and a measure of the likelihood that the past performance is an indicator of future performance.

Requirements Documents are all aspects of the RFP that convey the needs of the Government to offerors, including the SOO, SOW, PWS, technical requirement documents, and system requirement documents.

Requiring Office is the entity (for example, a program management office or other organizational entity) responsible for translating user requirements into the requirements documents within the RFP that communicate those requirements to offerors.

Risk, as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or subfactor may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance. (For firm-fixed-price contracts, the reference to increased cost may be removed from the risk definition.)

Significant Strength is an aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

Significant Weakness in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance.

Source Selection Advisory Council (SSAC) is a group of senior Government personnel who provide counsel during the source selection process and must prepare the comparative analysis of the SSEB's evaluation results, when directed by the SSA.

Source Selection Authority (SSA) is the official designated to make the source selection decision.

Source Selection Team (SST) is a team that is tailored to the unique acquisition, tasked with carrying out a source selection. Composition of the team generally consists of the SSA, PCO (if different from the SSA), SSAC, SSEB, Advisors, Cost or Price Experts, Legal Counsel, Small Business Specialists, and other subject-matter experts.

Source Selection Decision Document (SSDD) is the document that reflects the SSA's independent, integrated, comparative assessment and decision.

Source Selection Evaluation Board (SSEB) is a group of Government and, if needed, approved non-Government personnel, representing the various functional disciplines relevant to the acquisition.

Source Selection Plan (SSP) is a plan that describes how the source selection will be organized, how proposals will be evaluated and analyzed, and how source(s) will be selected.

Strength is an aspect of an offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.

Weakness means a flaw in the proposal that increases the risk of unsuccessful contract performance.